

25STCV11056 25STCV11056

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Case Number: 25STCV11056 Hearing Date: August 20, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: August 20, 2026

CASE NUMBER: 25STCV11056

CASE NAME: Henry Jin v. BMW of North America, LLC

MOVING PARTY: Defendant BMW of North America,
LLC

OPPOSING PARTY: Plaintiff Henry Jin

PROCEEDING: Motion for judgment on the pleadings

RULING

SUMMARY: The motion to strike is granted as to the second, third and fourth causes of action, with 20 days' leave to amend. The Court sets an OSC Re: Amended Complaint for _____, at 8:30 a.m. The Status Conference is continued to the same date and time.

Background

This is a lemon law action arising out of Henry Jin's ("Plaintiff" or "Jin") purchase of a 2019 BMW i8 ("Vehicle") allegedly manufactured and/or distributed by Defendant BMW of North America, LLC ("Defendant" or "BMW"). Plaintiff alleges that express and implied warranties accompanied purchase of the Vehicle and that the Vehicle

was delivered with defects and nonconformities to warranty, including engine defects. Plaintiff alleges that he delivered the Vehicle to Defendant and its authorized service and repair facilities on many occasions to repair the defects and that, despite a reasonable number of opportunities, Defendant and/or its authorized service and repair facilities were unable to repair the Vehicle. Plaintiff's Complaint asserts the following causes of action: (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of Civil Code section 1793.2, subdivision (b), (3) violation of Civil Code section 1793.2, subdivision (a)(3), and (4) breach of implied warranty of merchantability (Civil Code sections 1791.1 and 1794).

On May 19, 2025, Defendant filed an Answer.

On April 22, 2026, Defendant filed the Motion for Judgment on the Pleadings ("Motion") and Request for Judicial Notice ("RJN"). On August 7, 2026, Plaintiff filed an Opposition, and on August 13, 2026, Defendant filed a Reply.

MOTION FOR JUDGMENT ON THE PLEADINGS

I. Legal Standard

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1064.) "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) When considering demurrers and judgment on the pleadings, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.)

"In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

Additionally, Code of Civil Procedure section 439, subdivision (a) states that “before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” The moving party “shall file and serve with the motion for judgment on the pleadings a declaration” that either states that a meeting took place or that the non-moving party did not respond to the request. Although a determination that the meet and confer process was insufficient is not grounds to grant or deny a motion for judgment on the pleadings, that does not mean the requirement can be wholly ignored. (Code. Civ. Proc., § 439, subd. (a)(4).)

II. Discussion

A.

Meet and Confer Requirement

Defendant’s counsel declares that on February 2, 2026, in an attempt to meet and confer, she sent an email to Plaintiff’s counsel, noting the defects present in the Complaint. (Declaration of Vanessa S. Vittorio ¶ 5, Ex. 2.) Plaintiff’s counsel never responded to her attempts to meet and confer about the MJOP. (Ibid.) The Court finds that Defendant has satisfied the meet and confer requirement.

B.

Request for Judicial Notice

Defendant requests that the Court take judicial notice of the March 25, 2023, Motor Vehicle Retail Installment Contract – California (“Purchase Agreement”), attached to the Declaration of Vanessa S. Vittorio, Esq. as Exhibit 1, which pertains to Plaintiff’s purchase of the Vehicle at issue in this case. (RJN, p. 1.) Defendant argues that the Court may take judicial notice of the Purchase Agreement because it is incorporated into Plaintiff’s Complaint and is a matter “not reasonably subject to dispute” under Evidence Code section 452, subdivision (h).

While, in ruling on a motion for judgment on the pleadings, an extrinsic document may be considered, the Court may only “consider material documents referred to in the allegations of the complaint.” (City of Port Hueneme v. Oxnard Harbor Dist. (2007) 146 Cal.App.4th 511, 514 (citing to Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)) In Yu v. Liberty Surplus Ins. Corp, the appellate court noted that a reference to another document should be “clear and unequivocal.” (Yu v. Liberty Surplus Ins. Corp. (2018) 30 Cal.App.5th 1024, 1032.) In the cases cited by Defendant, there was no dispute that the complaint explicitly referred to the document that was considered by the Court. For example in Align Technology, Inc. v. Tran, the complaint specifically referred to a settlement agreement; thus, the Court in Align found it appropriate to take judicial notice of the agreement. (Align Technology, Inc. v. Tran (2009) 179 Cal.App.4th 949, 956 fn. 6.) Similarly, in Ingram v. Flippo, the court granted judicial notice under Evidence Code section 452, subdivision (h) because “the complaint excerpted quotes from the letter and summarized parts of it in some detail” and “the contents of the letter and media release form the basis of the allegations in the complaint.” (Ingram v. Flippo (1999) 74 Cal.App.4th 1280, 1285 fn. 3, overruled on other grounds by Leon v. County of Riverside (2023) 14 Cal. 5th 910.)

In this case, the Complaint does not identify the Purchase Agreement by name, does not attach it, quote its terms, or assert any claims for breach of that agreement. The Court finds the phrase “cancel the contract” asserted in paragraph 23 of the Complaint to be ambiguous and susceptible to interpretation, not necessarily referring to the Purchase Agreement submitted by Defendant. Given that the Complaint does not unambiguously identify the Purchase Agreement and because all four causes of action are based on Defendant's manufacturer warranty obligations rather than in a contractual obligation of the non-party dealership, the Court denies Defendant's request to take judicial notice of the Purchase Agreement for purposes of this motion.

C.

Analysis

Defendant moves for judgment on

the pleadings on the following grounds: (1) Plaintiff lacks standing because the Vehicle was purchased used and does not qualify a “new motor vehicle” and (2) each cause of action fails to state a claim because the allegations are conclusory and devoid of case-specific facts.

Defendant argues that the Court should grant the Motion without leave to amend because the Purchase Agreement, incorporated into the Complaint, clearly demonstrates that Plaintiff bought a used vehicle. (Motion, p.20.) Furthermore, according to Defendant, all of Plaintiff’s claims are defeated by the California Supreme Court’s decision in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 (“Rodriguez”), and there is no reasonable possibility that the defects in the complaint can be cured by amendment. In opposition, Plaintiff argues that Defendant has not met its burden of showing that amendment would be futile. (Opposition, p.14.) According to Plaintiff, merely removing paragraph 23 of the Complaint, which refers to the “contract” would be sufficient. (Id. at p.15.) In its Reply, Defendant argues that Plaintiff has failed to demonstrate how amendment can cure the fatal defect in the Complaint, the fact that Plaintiff purchased a used vehicle. (Reply, p.15.)

a.

Lack of Standing

Defendant argues that the Complaint and the Purchase Agreement filed with the RJN indisputably establish that the Vehicle was purchased used and was not accompanied by BMW’s full Limited-New Vehicle Warranty at the time of sale. (Motion, p.9.) Instead, Plaintiff obtained the balance of the remaining warranty that started before his purchase of the used Vehicle, along with a used-vehicle warranty, as the Vehicle was Certified Pre-Owned (“CPO”). (Ibid.) Defendant relies on the California Supreme Court’s decision in *Rodriguez* to argue that the Song-Beverly Act does not apply to Plaintiff’s purchase of the Vehicle. (Id. at pp. 10-14.)

In opposition, Plaintiff argues that Defendant relies on an extraneous document with a non-party, which is not identified in the Complaint. (Opposition, p.1.) Plaintiff’s Complaint is entirely and exclusively based on Defendant’s statutory warranty obligations as the manufacturer of the Vehicle, not the Purchase Agreement submitted by Defendant. (Id. at

pp. 2-3.) Plaintiff also disputes Defendant's interpretation of Rodriguez to mean that all of Plaintiff's claims under the Song-Beverly Consumer Warranty Act are barred because he allegedly purchased a used vehicle. (Opposition, pp. 7-9.)

In its Reply, Defendant argues that "Plaintiff cannot dispute, contest or otherwise challenge the incontrovertible fact that the Subject Vehicle was used when Plaintiff purchased it and did not receive a new-vehicle warranty with his purchase." (Reply, p.9.) Defendant argues that Plaintiff cites to the wrong section of Rodriguez and reiterates that based on the Court's ruling in Rodriguez, the Song-Beverly Act does not apply to Plaintiff's purchase of a used vehicle. (Id., p.10.)

The California Supreme Court in Rodriguez, 17 Cal. 5th at 196, held "that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." However, the Court recognized that "'certain used cars'—'a dealer-owned vehicle and a "demonstrator" or other motor vehicle sold with a manufacturer's new car warranty"—qualify as 'new motor vehicles' for purposes of the statute." (Id. at 198.)

Having declined to take judicial notice of the Purchase Agreement for purposes of this motion, the Court cannot determine as a matter of law on the face of the pleading whether the Vehicle in this case was sold with the balance of an unexpired warranty or with a new manufacturer warranty issued at the time of sale. Thus, the Court cannot conclude that Plaintiff lacks standing in light of the Rodriguez decision.

b.
First Cause of Action –Civil Code section 1793.2(d)

Defendant argues that the first cause of action fails because it does not meet the requirements for liability under the Song-Beverly Act, as set forth in Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205 ("Silvio"). (Motion, pp. 14-16.) According to

Defendant, the Complaint makes conclusory allegations that the Vehicle had “engine defects,” without describing the alleged defect, whether it was covered by a warranty, how it affected the use, value or safety to a reasonable person, how many times the defect was presented for repair, and how many attempts were made to conform the Vehicle to the warranty.

(Ibid.) Thus, Defendant is left to speculate regarding the specifics of these allegations.

In opposition, Plaintiff argues that “Defendant improperly conflates Plaintiff's ultimate burden of proof with Plaintiff's pleading burden.”

(Opposition, p.11.) According to Plaintiff, the allegations in the Complaint are sufficient because “Plaintiff alleges that Defendant issued express written warranties covering the Subject Vehicle; that the vehicle developed engine defects during the warranty period; that Plaintiff delivered the vehicle to Defendant's authorized repair facilities on multiple occasions for repair; that Defendant and its authorized representatives were unable to repair the vehicle to conform to the applicable express warranties after a reasonable number of opportunities; that the defects substantially impaired the vehicle's use, value, or safety; and that Defendant nevertheless failed to promptly replace the vehicle or make restitution as required by Civil Code section 1793.2, subdivision (d).” (Id. at p.11.) Plaintiff argues that these facts are sufficient at the pleading stage and provide Defendant with fair notice of the nature of Plaintiff's claims. (Id. at pp. 11-12.) According to Plaintiff, Defendant improperly relies on Silvio and CACI No. 3201, which pertain to elements that must be proven at trial and sufficiency of evidence, not the level of factual detail required in a complaint. (Ibid.)

In its Reply, Defendant reiterates that, according to Silvio, the Complaint must specifically allege the facts regarding the multiple repair attempts.

(Reply, pp. 12-13.) Here, the Complaint makes conclusory allegations regarding “engine defects” without attempting to explain whether the problem was covered under the warranty, how it affected the use, value, or safety of the Vehicle for a reasonable person, how many times the defect was presented to Defendant for repair and how many repair attempts were made. (Ibid.)

Pursuant to Civil Code section

1793.2, subdivision (d), "if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity." The Complaint alleges that Defendant issued express warranties covering the Vehicle; the Vehicle developed "engine defects" during the warranty period; Plaintiff delivered the Vehicle to Defendant's authorized repair facilities on multiple occasions; Defendant and/or the facilities were unable to conform the Vehicle to the applicable express warranties after a reasonable number of opportunities; and the defects substantially impaired the Vehicle's use, value, or safety. Under California's fact-pleading standard, a complaint must allege "ultimate facts" constituting the cause of action, but need not plead the evidentiary facts or the evidence by which those ultimate facts will be proven. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) The Court agrees that Silvio focuses on the sufficiency of the evidence presented at trial (109 Cal.App.4th at 1207 (trial court's grant of motion for nonsuit against plaintiff at close of plaintiff's case affirmed), and the CACI instructions set forth elements to be proven at trial; neither addresses pleading standards for a Song-Beverly Act complaint. Under the applicable standard, the allegations in the Complaint are sufficient to plead a cause of action for violation of Civil Code section 1793.2, subdivision (d).

The Motion is denied as to the first cause of action.

c.

Second Cause of Action – Civil Code section 1793.2(b)

Defendant argues that the second cause of action fails because the Complaint does not present allegations regarding which repair for which defect took an unreasonable amount of time to begin, whether it took longer than 30 days to complete, or whether Plaintiff incurred out-of-pocket costs resulting from the delay. (Motion, pp. 16-18.)

In his opposition, Plaintiff reiterates that Defendant improperly conflates burden of proof with pleading requirements. (Opposition, p.13.) Plaintiff alleges that Defendant issued

express warranties, the Vehicle was presented to Defendant's authorized repair facilities for repairs, Defendant failed to commence repairs within a reasonable time and failed to complete repairs within 30 days. (Ibid., citing to Complaint ¶¶ 18-24.) Plaintiff maintains that these allegations are sufficient at this stage and provide sufficient notice to Defendant. (Id. at pp. 13-14.) Plaintiff argues that the federal district court decisions cited by Defendant addressing the federal pleading standards are not applicable or binding. (Ibid.)

In its Reply, Defendant reiterates that the Complaint and Plaintiff's Opposition cite to conclusory statements without providing information regarding how many consecutive days the Vehicle was at an authorized facility for repair at any single presentation. (Reply, pp. 13-14.)

Pursuant to Civil Code section 1793.2, subdivision (b), "[w]here those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay."

The Complaint alleges, "[a]lthough Plaintiff presented Subject Vehicle to Defendant's representatives in this state for repair of Subject Vehicle, Defendant and/or its representatives failed to complete repairs within thirty days, in violation of Civil Code section 1793.2(b)." (Complaint ¶ 21.)

These allegations are general and conclusory without alleging that a specific repair attempt exceeded the 30-day period. There is a reasonable possibility that Plaintiff can plead additional, specific facts regarding the elements set forth in Civil Code section 1793.2, subdivision (b). Thus, the Motion is granted as to the second cause of action with 20 days' leave to amend.

d.

Third Cause of Action – Civil Code section
1793.2(a)(3)

Defendant argues that the third
cause of action fails because the Complaint does not present any facts regarding
the availability of parts and service literature that could have prevented
repairs during the express warranty period. (Motion, p.18.)

In opposition, Plaintiff argues
that the allegations regarding BMW's failure to make sufficient service
literature and/or replacement parts available to its authorized repair
facilities during the express warranty period are sufficient pursuant to Civil
Code section 1793.2. (Opposition, p.14.) Plaintiff argues that California law does not
require Plaintiff to present factual allegations regarding a missing part,
bulletin, or service document in detail.
(Ibid.)

In its Reply, Defendant reiterates
that the Complaint does not allege any facts regarding the specific "literature
and/or replacement parts" that were unavailable and prevented repairs during
the express warranty period. (Reply, p.14.) Plaintiff's opposition merely provides a
conclusory statement that there were insufficient parts or literature. (Ibid.)

Pursuant to Civil Code section
1793.2(a)(3), "(a) [e]very manufacturer of consumer goods sold in this state
and for which the manufacturer has made an express warranty shall (3) [m]ake
available to authorized service and repair facilities sufficient service
literature and replacement parts to effect repairs during the express warranty
period." The Complaint alleges "[i]n
violation of Civil Code section 1793.2(a)(3), Defendant failed to make
available to its authorized service and repair facilities sufficient service
literature and/or replacement parts to effect repairs during the express
warranty period."

These allegations are general and
conclusory and do not identify any part, document, or repair attempt affected
by the unavailable literature or replacement part. The allegations recite the statutory language
without providing Defendant with fair notice of the factual basis of the claim.

The Court finds that there is a

reasonable possibility that Plaintiff can provide additional specific facts regarding the literature and/or replacement parts referenced in the Complaint. Thus, the Motion is granted as to the third cause of action with 20days' leave to amend.

e.

Fourth Cause of Action - Implied Warranty of Merchantability (Civil Code sections 1791.1, 1794)

Defendant argues that the fourth cause of action fails because Civil Code sections 1791.1 and 1794 will not apply to a used Vehicle. (Motion, pp. 18-19.) Moreover, the Complaint does not allege the nature of Vehicle's defects and how they affected the Vehicle's use and rendered it unfit. (Ibid.) Defendant argues that the Complaint does not allege any facts as to what representations were made about the Vehicle, how those representations were conveyed, and how the Vehicle failed to meet them and differed in quality from vehicles generally acceptable in the trade. (Ibid.)

In opposition, Plaintiff argues that the allegations in the Complaint, as set forth paragraphs 29-33 are sufficient under Civil Code sections 1791.1, 1792, and 1794. (Opposition, p. 14.)

In its Reply, Defendant reiterates that Civil Code sections 1791.1 and 1794 are limited to "consumer goods," which section 1791 defines as "any new product or part thereof," and given that the Vehicle was purchased used, these sections do not apply. (Reply, p.14.)

As previously discussed, based on the face of the Complaint, it is not clear that Plaintiff purchased a used vehicle. Accordingly, at this stage, the Court cannot determine that Civil Code sections 1791.1 and 1794 do not apply.

As to the sufficiency of the allegations, the Complaint alleges "Subject Vehicle was not of the same quality as those generally acceptable in the trade; did not pass without objection in the trade; was not fit for the ordinary purposes for which such goods are used; was not adequately contained, packaged, and labeled; and/or did not measure up to the promises or facts stated on the container or label." (Complaint ¶ 31.)

These allegations are conclusory
and recite the definition of "implied warranty of merchantability" set forth in
Civil Code section 1791.1. As there is a
reasonable possibility that Plaintiff can plead additional specific facts, the
Motion is granted with 20 days' leave to amend.

Conclusion

The motion to strike is granted as to the second, third and
fourth causes of action, with 20 days' leave to amend. The Court sets an OSC Re:
Amended Complaint for _____, at 8:30 a.m. The Status Conference is continued to the same
date and time.

**

Defendant must file an Answer by _____. An OSC Re: Answer is set for _____ at 8:30
a.m. and a Case Management Conference is set for _____ at 8:30 a.m. Defendant
to give notice.

Date: August
20, 2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court